

Crl. Appeal No.13833 of 2022

Nadir Khan

The State etc.

09.03.2022

Mian Shahbaz Younas, Advocate for the appellant.

Through the instant case, the learned counsel for the appellant has made the following prayer, which is as under:-

“Under the circumstances, it is, therefore, most humbly and respectfully prayed that this Criminal Appeal may very kindly be accepted and the impugned order of the learned Additional Sessions Judge dated 24.02.2022 may very kindly be set aside and the application of the appellant for summoning of register No.19, 21 and Roznamcha dated 24.08.2021 may very kindly be allowed in the larger interest of justice.

2. It is further prayed that the learned Additional Sessions Judge Jaranwala may very kindly be directed not to pass the final judgment till the final decision of this criminal appeal.”

2. During the course of arguments the learned counsel for the appellant admitted that no specific reason was stated by the appellant for the summoning of registers No. 19, 21 and rapt roznamcha dated 24.08.2021. Even rapt No. was not mentioned in the application for summoning of registers No. 19, 21 and rapt roznamcha dated 24.08.2021. The object of summoning to produce documents is that there may not be failure of justice on account of not bringing the valuable evidence on record or leaving ambiguity in the statements of the witnesses examined from either side. The determinative

factor is whether it is essential to the just decision of the case. The learned counsel for the appellant is unable to state reasons or purpose for summoning registers No. 19, 21, and rapt roznamcha dated 24.08.2021 and he admitted that in the application for summoning of registers No. 19, 21 and rapt roznamcha dated 24.08.2021 no reason was mentioned by the appellant.

3. By the statutory provisions contained in the Section 94 of the Cr.P.C the Court is given discretionary power to issue summons on the application of the prosecution or the accused which may also be noticed. Section 94 of the Cr.P.C provides that the judge may, on the application of the prosecution, issue any process for the production of any document or other thing. Section 94 of the Cr.P.C. provides that if the accused applies for the issuance of any process for the production of any document or thing, the Judge shall issue such process unless he considers, for reasons to be recorded, that such application should be refused on the ground that it is made for the purpose of vexation or delay or for defeating the ends of justice. Chapter VII of the Cr.P.C., which deals with 'Process To Compel The Production Of Documents and Other Movable Property, and For the Discovery of Persons Wrongfully Confined', makes provisions for issuance of summons to produce. Section 94 of the Cr.P.C empowers the Court to issue summons for production of documents or other thing by providing that whenever any Court considers that the production of any document or other thing is necessary or desirable for the purposes of any investigation, inquiry, trial or other proceeding under the Cr.P.C. by or before such Court, such Court may issue summons to the person in whose possession or power such document or thing is believed to be, requiring him to attend and produce it, or to produce it, at the

time and place stated in the summons. However, this provision is characterized by use of the expression 'may' and not 'shall' which is suggestive of the inference as to the Court not being under any obligation to compel for the production of the documents or any other thing.

4. During the course of hearing, learned counsel for the appellant failed to point out any jurisdictional error, patent illegality or perversity in the impugned order passed by the learned trial court. He also could not put into service any substantive argument, so as to convince this Court to take a different view than the one taken by the learned trial court. No other argument was raised.

5. Considering the peculiar facts and circumstances of the case noted above, coupled with the reasons aforementioned, this Court is of the considered view that the present appeal is misconceived, bereft of merit and without any substance. Thus, it must fail. No case for interference has been made out.

6. Resultantly, the instant appeal stands dismissed, however, with no order as to costs.

(Raja Shahid Mehmood Abbasi) (Aalia Neelum)
Judge Judge

Approved for reporting.

Judge Judge